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Chapter 2 - Application for Replacement/Initial Nonimmigrant Arrival-Departure Record (Form I-102)

Guidance

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A. Eligibility Requirements

An alien issued an electronic Arrival/Departure Record (Form I-94) may obtain a paper version of Form I-94 by visiting the U.S. Customs and Border Protection (CBP) [I-94 Website: Travel Records for U.S. Visitors](#). An alien who cannot access his or her electronic Form I-94 records and needs a replacement of any of the following forms may generally request one by filing an Application for Replacement/Initial Nonimmigrant Arrival-Departure Document ([Form I-102](#)):^[1]

- Form I-94;
- Nonimmigrant Visa Waiver Arrival/Departure Record (Form I-94W); or
- Crewman's Landing Permit (Form I-95).

An alien cannot use Form I-102 if he or she was not properly inspected and admitted at a port of entry or if he or she is seeking to correct an improper inspection (through oversight or error on the part of the government).^[2]

1. Replacing a Lost, Stolen, Mutilated, or Destroyed Arrival-Departure Record



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An alien uses Form I-102 to apply for the replacement of a lost, stolen, mutilated, or destroyed Form I-94, Form I-94W, or Form I-95.

An alien who was not issued Form I-94 when he or she was admitted as a nonimmigrant (for example, a Canadian citizen who was admitted as a nonimmigrant visitor or Mexican citizen who was admitted using a Border Crossing Card (Form DSP-150)), but now requires one, may also file the Form I-102.^[3]

2. Correcting Inaccurate Information on Arrival-Departure Records

At times, USCIS may have issued Form I-94, Form I-94W, or Form I-95 with incorrect information. In such cases, an alien may file [Form I-102](#) to correct information on the form issued by USCIS. However, if CBP issued Form I-94, Form I-94W, or Form I-95 with incorrect information, the alien must contact CBP to correct the information.^[4]

If USCIS made the error on Form I-94, Form I-94W, or Form I-95 through no fault of the applicant, the applicant is not required to submit the fee when filing Form I-102. However, if the error is based on information that the applicant provided or failed to provide to USCIS or the U.S. Department of State, the applicant must submit the filing fee when filing Form I-102.^[5]

Examples of incorrect information may include:

- Misspelled name;
- Incorrect or inverted dates of birth;
- Incorrect class of admission code;
- Incorrect expiration dates; and
- Missing or incorrect duration of stay.

B. Filing and Evidence

The applicant must properly file the [Form I-102](#) at the appropriate filing location, complete and sign the application, pay the filing fee (if required), and submit all required initial evidence, according to the instructions to Form I-102.^[6] If requesting replacement of a mutilated card, the applicant must submit the original card.^[7]

If seeking a correction, the applicant must submit the original Form I-94, Form I-94W, or Form I-95; an explanation of the incorrect information; and any evidence to verify the correct information.^[8] USCIS only issues a replacement arrival-departure document with the applicant's legal name and does not issue a replacement arrival-departure document containing a nickname.^[9]

C. Adjudication

The officer must conduct a records check and review the supporting evidence to verify the information provided by the applicant regarding the initial inspection and admission or parole, such as the date, place, and manner of entry.^[10]

1. Review Supporting Documentation

Officers review the completed form and the evidence submitted in support of the Form I-102.

The applicant has the burden of proof to establish eligibility and should support the request for a replacement document with some evidence of admission or parole, such as a copies of the passport biographical data page and page with admission stamp, or a copy of the original Form I-94, Form I-94W, or Form I-95 (or the original damaged form itself). Lacking such evidence, an applicant may submit a statement explaining the facts of admission and reasons why other evidence is unavailable.

2. Verification

In addition to reviewing the initial evidence submitted by the applicant, the officer must verify arrival, departure, and current status through electronic systems or manual checks when necessary.

3. Requests for Evidence and Interviews

Officers may issue Requests for Evidence for [Form I-102](#) when necessary.^[11] In general, USCIS does not require interviews for Form I-102 applicants; however, USCIS may interview the applicant if he or she is claiming arrival as a nonimmigrant who was not issued Form I-94 or if there are doubts regarding the applicant's claims.

The officer should be alert for honest errors in the information the applicant provides. For example, if the applicant was inspected at a pre-flight inspection station outside the United States, he or she may have provided incorrect information regarding his or her place of arrival.

D. Decision

Approval

[Form I-102](#) is not a discretionary application, and there is no requirement to verify maintenance of status or determine admissibility. If USCIS records and documentary evidence submitted by the applicant support the claimed admission or parole, the officer must approve the application. USCIS then notifies the applicant of the approval along with the replacement Form I-94, Form I-94W, or Form I-95.^[12]

Denial

If the evidence does not demonstrate the claimed admission or parole, or if the record shows that the requested I-94, I-94W, or I-95 was fraudulently obtained, the officer denies the application and sends written notice to the applicant.^[13] While there is no appeal from an adverse decision on Form I-102, the applicant may seek a motion to reopen or reconsider by filing a Notice of Appeal or Motion ([Form I-290B](#)).^[14] If appropriate, the officer should follow USCIS procedures for placing the applicant into removal proceedings if the period to file a motion has elapsed.

Footnotes

^[^ 1] In general, this includes aliens who entered the United States as nonimmigrants, parolees, asylees, refugees, and certain aliens who entered under the Compact of Free Association between the United States and the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau. See Application for Replacement/Initial Nonimmigrant Arrival-Departure Document ([Form I-102](#)). Asylees and those who have Form I-94 as a temporary Form I-551 cannot use the Application for Replacement/Initial Nonimmigrant Arrival-Departure Document ([Form I-102](#)) to replace a lost, mutilated, or destroyed Form I-94. Instead, they must contact a USCIS field office or the asylum office with jurisdiction over their current residence to obtain a replacement or corrected Form I-94. Those who obtained derivative asylee status through a Refugee/Asylee Relative Petition ([Form I-730](#)) may file a Form I-102 to obtain a replacement or corrected Form I-94. An alien who was not issued Form I-94 when the alien was admitted as a nonimmigrant military member of the U.S. armed forces, a participant in a North Atlantic Treaty Organization (NATO) or civil component or a participant in a Partnership for Peace military program under the Status of Forces Agreement (SOFA), may request an initial Form I-94 for no fee.

^[^ 2] See [8 CFR 101.2](#). For more information, see Volume 7, Adjustment of Status, Part O, Registration, Chapter 2, Presumption of Lawful Admission Despite Errors Occurring at Entry [[7 USCIS-PM O.2](#)].

^[^ 3] See [8 CFR 264.6\(a\)\(3\)](#).

^[^ 4] To have information corrected by CBP, an alien should go to the nearest CBP port of entry or the nearest CBP deferred inspection office. See CBP's [Locate a Port of Entry](#) webpage for locations and hours of operation.

^[^ 5] See Fee Schedule ([Form G-1055](#))

^[^ 6] For general filing requirements and procedures, see Volume 1, General Policies and Procedures, Part B, Submission of Benefit Requests [[1 USCIS-PM B](#)]. For filing location information, see the [Direct Filing Addresses for Form I-102, Application for Replacement/Initial Nonimmigrant Departure Document](#) webpage. For filing fee information, see the Fee Schedule ([Form G-1055](#)).

^[^ 7] See instructions to [Form I-102](#).

^[^ 8] See instructions to [Form I-102](#).

[^9] For additional information on the use of personal information on USCIS documents, see Part A, Secure Identity Documents Policies and Procedures, Chapter 2, USCIS-Issued Secure Identity Documents, Section A, Personal Information Used on Secure Identity Documents [[11 USCIS-PM 2.A](#)].

[^10] USCIS may only issue a replacement Form I-94, Form I-94W, or Form I-95 for the applicant's most recent entry. USCIS does not issue a replacement arrival document for a prior admission (for example, if the applicant has already departed the United States). Exceptions exist for nonimmigrants readmitted to the United States without a new Form I-94. See [8 CFR 214.1\(b\)\(4\)](#).

[^11] For more information on Requests for Evidence, see Volume 1, General Policies and Procedures, Part E, Adjudications, Chapter 6, Evidence, Section F, Requests for Evidence and Notices of Intent to Deny [[1 USCIS-PM E.6\(F\)](#)].

[^12] See [8 CFR 103.2\(b\)\(19\)](#).

[^13] See [8 CFR 103.3\(a\)\(1\)\(i\)](#).

[^14] See [8 CFR 103.5\(a\)](#).

Current as of December 22, 2025
